

		Accordingly, each element of the Goonewardene three-part test have been met. First, by naming Defendant as a third-party beneficiary, the Lease evinces an intention to directly benefit Defendant by allowing it to take advantage of the arbitration provisions. Second, a motivating purpose of the contracting parties was to provide Defendant with a benefit, i.e. the power to compel arbitration. Third, since the contracting parties' specifically named Defendant as a third-party beneficiary, allowing Defendant to enforce the arbitration provisions is consistent with the contracting parties' reasonable expectations. Therefore, Defendant is an expressly intended third-party beneficiary who may compel arbitration under the Lease. (See Ochoa, supra, 89 Cal.App.5th at p. 1339 [noting that "[i]f the signatories had intended to benefit FMC, such a purpose would have been easy to articulate. They could have simply named FMC—directly or by class as the vehicle's manufacturer—as a person entitled to compel arbitration. But they did not."]; see also Ngo, supra, 23 F.4th at p. 948 [similarly noting "the parties easily could have indicated that the contract was intended to benefit BMW—but did not do so."].) The court therefore finds Defendant is an intended third-party beneficiary under Goonewardene. The motion is GRANTED. The court STAYS this action pending resolution of the parties' arbitration. (Code Civ. Proc., § 1281.2.) Defendant to give notice.
4	2023-01326675 <i>Contreras vs. Costa Mesa Knockout, LLC</i>	Motion to Enforce Settlement The unopposed motion of plaintiff Adrian Contreras for an order enforcing a settlement with defendants Costa Mesa Knockout, LLC, Paige Hopkins, and Kevin Reilly and entering judgment on it is GRANTED. Judgment requiring defendant to pay plaintiff \$35,000 will be entered.
5	2023-01318166 <i>Gilleland vs. Patterson</i>	Motion to Compel Deposition (Oral or Written) Defendant Martha G. Patterson's Motion to Compel Compliance with the Deposition Subpoena for Business Records from Nonparty FEM Law Group P.C. is DENIED as moot. Defendant's request for sanctions is GRANTED. FEM Law Group P.C. is ORDERED to pay \$1.352 in sanctions. Defendant's requests for judicial notice are granted as documents of the courts of this state. "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480(a).)

		FEM has since responded to the subpoena for business requests. If Defendant believes the responses are deficient, she must file a separate motion. <u>Sanctions</u> The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480(j).) Here, FEM objected to all discovery requests on the basis of attorney client privilege, relevance, undue burden, privacy rights, and mediation privilege. FEM failed to provide any substantial justification for serving blanket boilerplate objections to all requests without individually analyzing the requests. For example, the first 2 requests are related to communications between FEM and Nikki Gilleland’s counsel. Such communications are not protected by the attorney-client privilege, attorney-work product, or involve any privacy concerns. Thus, FEM did not act with substantial justification.
6	2024-01438529 <i>Gray vs. Speno</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Production Plaintiffs’ motions against Defendant ARJO Holding USA, Inc. are CONTINUED to 1/15/26 at 10:00 a.m. in this Department. The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i> no later than 12/5/25. If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than 12/31/25. The parties/counsel are ORDERED to file a <i>JOINT STATUS REPORT</i>, no longer than five pages total, indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why, no later than 1/7/26. The report should clearly state <u>in the opening paragraph</u> which responses remain at issue.